Tentative Rulings and Resolution Review Hearings
June 29, 2026
Department 63

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

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8:30 a.m. – Law & Motion

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AMANN VS. NORTH STATE SECURITY, INC.
CASE NUMBER: 24CV-0206698

Tentative Ruling on Motion for Final Approval of Class Action and PAGA Settlement: Plaintiff Nicholas Amann brought this wage and hour class action and Private Attorneys General Act ("PAGA") matter against Defendant North State Security, Inc. The parties have settled the matter for a total of $1,100,000.00 and seek final approval by the Court. As a preliminary matter, Plaintiff seeks certification of the class. This Court's general practice is to certify a class for settlement purposes at the preliminary approval stage. While not requested at the time, the Court granted certification of the class when ruling on the Motion for Preliminary Approval. The Court refers the parties to the tentative ruling dated March 2, 2026 which was adopted as the final ruling.

Final Approval of the Settlement. The proposed final breakdown for the settlement is as follows:

Total Settlement Amount	**$1,100,000.00**
Proposed Attorneys' Fees	-$385,000.00
Litigation Costs and Expenses	-$25,848.51
Settlement Administration Costs	-$9,650.00
Proposed Class Representative Enhancement	-$7,500.00
PAGA Claim Settlement Allocation Payment to Labor and Workforce Development Agency (LWDA) (65%) Payment to Aggrieved Employees as Individual PAGA payments (35%)	-$50,000.00 ($32,500.00) ($17,500.00)
Remaining to be Disbursed to Class Members and PAGA Employees	**$639,501.49**

The settlement class is comprised of 494 individuals. Individual payments are based on a pro rata amount of pay periods worked during the class period. No claim form was necessary to participate in the settlement. Unless a class member opted out, they will receive a payment based on the time worked as calculated by the settlement administrator.

In deciding whether a class settlement is sufficiently fair, adequate and reasonable to warrant granting final approval, the Court considers several factors, including: 1) the amount offered in settlement; 2) the strength of plaintiff's case and the risks inherent in the continued litigation; 3) the extent of discovery completed and the state of the proceedings when the settlement was reached; 4) the complexity, expense, and likely duration of the litigation in the absence of settlement; 5) the experience and views of class counsel; and 6) the reaction of class members to the proposed settlement. *Wershba v. Apple Computer* (2001) 91 Cal. App. 4th 224, 244-45. A presumption of fairness exists where (1) settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is low. *Nordstrom Com'n. Cases* (2010) 186 Cal. App. 4th 576, 581.

The factors here weigh in favor of granting final approval. Plaintiff has complied with the terms of the Court's Order preliminarily approving of the settlement. In granting preliminary approval, the Court found that Plaintiff's assessment of the value of the class claims was sufficient for the Court to determine that the settlement amount was within the range of reasonableness. Plaintiff has shown that Class Counsel is experienced in wage and hour class action litigation, including settlement, and that before entering into the proposed settlement, counsel thoroughly investigated and engaged in discovery regarding the factual and legal issues in this lawsuit. Plaintiff has further demonstrated that the parties engaged in arm's length bargaining by participating in mediation before an experienced mediator. Lastly, the overall reaction of the class to the proposed settlement was overwhelmingly positive. Notice was provided to 96% of the class members and not one class member objected. No requests for exclusion or workweek disputes were received. With the Court already having preliminarily approved this settlement, Plaintiff having complied with the terms of the Court's March 2, 2026 Order, and no objection being raised, there does not appear to be any reason why the Court should not now grant final approval of the settlement.

<u>Costs and Expenses</u>. Plaintiff seeks reimbursement for costs and expenses of $25,848.51. The Court preliminary approved costs up to $27,000. The incurred and anticipated costs appear to be appropriate. The Court finds that the $25,848.51 in costs and expenses incurred by Plaintiff's counsel are reasonable and were necessary to the prosecution of this action.

<u>Enhancement Award</u>. Plaintiff requests a class representative enhancement payment of $7,500 for Plaintiff Nicholas Amann. This amount was expressly stated in the class notice. The Court considers the following factors in determining whether to award the class representative an enhancement award: (1) the risk to the class representative in commencing suit, both financial and otherwise; (2) the notoriety and personal difficulties encountered by the class representative; (3) the amount of time and effort spent by the class representative; (4) the duration of the litigation and; (5) the personal benefit (or lack thereof) enjoyed by the class representative as a result of the litigation. *In re Cellphone Fee Termination Cases* (2010) 186 Cal. App. 4th 1380, 1394–95, citing *Van Vraken v. Atlantic Richfield Co*. (1995) 901 F. Supp. 294, 299. Plaintiff estimates that he has spent 27 hours assisting his attorneys with the lawsuit. Plaintiff's efforts have resulted in a monetary benefit to the class members and the State of California. Plaintiff took a risk in bringing the litigation and also signed a general release that the rest of the class did not sign. There has been no objection by any member of the class to the enhancement award. The Court finds that the $7,500 class representative enhancement award to Plaintiff Nicholas Amann is reasonable.

<u>Settlement Administration Costs.</u> The Court authorized ILYM Group, Inc. as the settlement administrator with an estimated cost of up to $10,000, however, the actual request is for $9,650. Nathalie Hernadez, a case manager for ILYM Group, provided a declaration that details the work done by ILYM Group. Zachary Greenberg provided an estimate that details settlement administration costs. The Court finds $9,650 to be reasonable for settlement administration costs.

<u>Attorneys' Fees</u>. Plaintiff is requesting attorneys' fees of 35% the settlement amount, or $385,000, and argues that the requested fees are reasonable under the common fund doctrine and a lodestar cross-check. Under the common fund doctrine, "when a number of persons are entitled in common to a specific fund, and an action brought by a plaintiff or plaintiffs for the benefit of all results in the creation or preservation of that fund, such plaintiff or plaintiffs may be awarded attorney's fees out of the fund." *Serrano v. Priest* (1977) 20 Cal. 3d 25, 34. Under the lodestar method, a base fee amount is calculated from a compilation of time reasonably spent on the

case and the reasonable hourly compensation of the attorney. This base amount is then potentially adjusted using multipliers based on various factors. *Id.* at 48.

The California Supreme Court case of *Laffitte v. Robert Half Intern. Inc.* (2016) 1 Cal. 5th 480 is instructive for evaluating the reasonableness of the instant attorneys' fees request. *Laffitte* held that when a settlement agreement creates a non-reversionary fund, the trial court may calculate attorneys' fees as a percentage of the common fund. There, the Court affirmed an attorneys' fees award of 33.33% of a common fund and found that there are recognized advantages of the percentage method over the lodestar method, "including relative ease of calculation, alignment of incentives between counsel and the class, a better approximation of market conditions in a contingency case, and the encouragement it provides counsel to seek an early settlement and avoid unnecessarily prolonging the litigation." *Id.* at 503. The trial court may cross-check a common fund attorneys' fees award with an abbreviated lodestar calculation for the purpose of "bringing a measure of the time spent by counsel into the trial court's reasonableness determination." *Id.* at 505. Lodestar is calculated by multiplying reasonable attorney time spent by a reasonable hourly rate. *PLCM Group v. Drexler* (2000) 22 Cal. 4th 1084, 1095. A reasonable hourly rate is based upon the prevailing rate for similar work in the pertinent geographic region. *Id.* However, the lodestar calculation is not meant to override the common fund percentage determination and does not impose an absolute maximum or minimum on the fee award. *Laffitte, supra,* 1 Cal. 5th at 504-505. Only when the multiplier calculated by lodestar cross-check is extraordinarily high or low should the Court consider adjusting the percentage to bring the multiplier within a justifiable range. *Id.* at 505.

> A lodestar cross-check thus provides a mechanism for bringing an objective measure of the work performed into the calculation of a reasonable attorney fee. If a comparison between the percentage and lodestar calculations produces an imputed multiplier far outside the normal range, indicating that the percentage fee will reward counsel for their services at an extraordinary rate even accounting for the factors customarily used to enhance a lodestar fee, the trial court will have reason to reexamine its choice of a percentage. (Walker & Horwich, supra, 18 Geo. J. Legal Ethics at p. 1463.)

Laffitte v. Robert Half Internat. Inc.(2016) 1 Cal. 5th 480, 504.

Plaintiff has provided evidence that 104.6 hours spent on the case between counsel and a paralegal. Based on the rates suggested, the lodestar would be $63,422.50. This proposed fee contemplatesd a multiplier of 6.07. Plaintiff did not provide much evidence to support the rates suggested. The rate suggested for Aidan D. Ghavimi is $925 per hour. No evidence has been provided regarding Aidan D. Ghavimi's qualifications and the Court finds this hourly rate to be unreasonably high and not supported by evidence. Zachary D. Greenberg suggests an hourly rate of $625 for himself and only provides his opinion as to the reasonableness of the rate, that he is licensed in California, and has experience in wage and hour class actions and PAGA matters. Nothing was provided regarding the paralegal's suggested rate of $200 per hour other than the opinion that this is reasonable for Los Angeles County. While the multiplier would be 6.07 under the requested attorney's fee and suggested lodestar, it is likely higher given the hourly rates used to calculate the lodestar.

> If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment. Courts using the percentage method have generally weighed the time counsel spent on the case as an important factor in choosing a reasonable percentage to apply. (5 Newberg on Class Actions, *supra*, § 15:86, pp. 332–333; see, e.g., *In re Thirteen Appeals Arising Out of San Juan Dupont Plaza Hotel Fire Litigation*, *supra*, 56 F.3d at p. 307 ["even under the [percentage of fund] method, time records tend to illuminate the attorneys' role in the creation of the fund, and, thus, inform the court's inquiry into the reasonableness of a particular percentage."].) A lodestar cross-check is simply a quantitative method for bringing a measure of

> the time spent by counsel into the trial court's reasonableness determination; as such, it is not likely to radically alter the incentives created by a court's use of the percentage method.

Laffitte v. Robert Half Internat. Inc.(2016) 1 Cal. 5th 480, 505.

“Multipliers can range from 2 to 4 or even higher.” *Wershba v. Apple Computer, Inc.* (2001) 91 Cal. App. 4th 224, 255 (overruled on other grounds in *Hernadez v. Restoration Hardware, Inc.* (2018) 4 Cal. 5th 260). *Wershba* cited two cases for the quoted sentence. The first is *Coalition for L.A. County Planning Etc. Interest v. Board of Supervisors* (1977) 76 Cal. App. 3d 241 where the approved attorney fees yielded a multiplier of 2.04. The second case cited by *Wershba* is *Arenson v. Board of Trade* (Ill. N. D. 1974) 372 F. Supp. 1349 which did not include a lode-star cross check and instead focused on a reasonable attorneys’ fee in a massive and landmark antitrust lawsuit. In setting the attorneys’ fee, the court wrote, “This Court's award of four times the hourly rate of the plaintiffs' attorneys is meant to adequately compensate them for initiating this significant litigation and negotiating such a beneficial settlement for the class; yet at the same time this award is not meant to provide a windfall to the plaintiffs' attorneys.” *Id.* at 1359. This is where the multiplier of 4 stems from. This Court did significant research to determine if a multiplier of 6 has ever been approved and was unable to locate such a case. Most cases reviewed were in the range of 1.5 to 2.

The Court finds that awarding the requested fee of $385,000 when the evidence provided by Plaintiff shows only $63,422.50 in actual legal work is not in the interest of justice. This is amplified by the rates being listed for counsel being set at $925 and $625 per hour with either no or very little evidence for the reasonableness of these rates. The Court notes that no objections were received, however, the Court also notes that the Class Notice provided no indication that the lodestar was so low in comparison to the requested fee.

The Court finds that a multiplier of 3 is fair and reasonable under the circumstances. This fairly and adequately compensates Class Counsel without it amounting to a windfall. A multiplier of 3 results in the following final breakdown of the settlement.

Total Settlement Amount	**$1,100,000.00**
Proposed Attorneys’ Fees	-$190,267.50
Litigation Costs and Expenses	-$25,848.51
Settlement Administration Costs	-$9,650.00
Proposed Class Representative Enhancement	-$7,500.00
PAGA Claim Settlement Allocation	-$50,000.00
Payment to Labor and Workforce Development Agency (LWDA) (65%)	($32,500.00)
Payment to Aggrieved Employees as Individual PAGA payments (35%)	($17,500.00)
Remaining to be Disbursed to Class Members and PAGA Employees	**$834.233.99**

The motion is **GRANTED** with the modified breakdown provided above. Plaintiff submitted a Proposed Order that will be modified to reflect the Court’s ruling. The Court retains jurisdiction pursuant to CRC 3.769(h). The Court sets the matter on **Monday, April 26, 2027 at 9:00 a.m. in Department 63** for a hearing on compliance. Prior to the hearing, Plaintiff is expected to provide evidence that the settlement checks were mailed, any uncashed checks were transmitted to the State of California Unclaimed Property Fund, and that all fees and costs have been paid as outlined above. Evidence should be filed no later than April 16, 2027.

BAMFORD, ET AL. VS. BURNEY WATER DISTRICT
CASE NUMBER: 24CV-0204809

Tentative Ruling on Order to Show Cause Re: Sanctions: On My 7, 2026, the Court issued an Order to Show Cause Re: Sanctions (OSC) to Guardians ad Litem Artensia Eaton and Lavon Bamford. The OSC was mailed directly to each Guardian ad Litem. The basis for the OSC is that both Guardians ad Litem failed to communicate with counsel. As to Artensia Eaton, the OSC is **DISCHARGED** as a Petition for Compromise of Claim of Minor was filed on May 22, 2026. The Court notes that this matter was filed on April 17, 2024. The Court further notes that Plaintiff's counsel has moved to be relieved as to Lavon Bamford on three separate occasions based on lack of communication with counsel. Each motion was accompanied by a declaration that was compliant with CCP 2015.5. The Court finds that Lavon Bamford has failed to cooperate in this matter, which has affected her effectiveness as the Guardian ad Litem for her minor children. **An appearance by Lavon Bamford is necessary on today's calendar. Absent an appearance, the Court intends to impose sanctions in the amount of $250 and issue an Order to Show Cause Re: Termination of Lavon Bamford's status as a Guardian ad Litem.**

Tentative Ruling on Petition to Approve Minor's Compromise: This Petition for Approval of Compromise of Claim for Minor is a settlement of minor Roman Eaton Harris' claims from 2023 against the Burney Water District. The minor's Guardian, Artensia Eaton, was appointed as the minor's Guardian ad Litem on July 9, 2025. The Court notes this is not an expedited petition brought on Judicial Council Form MC-350EX. See CRC Rule 7.950.5. Hearing is thus needed on the Petition before it can be approved. California Rule of Court, Rule 7.950 states that a petition for court approval of a minor's compromise must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise.

The Petition lacks necessary information. The dollar amounts are missing from Item 11.b.(5). Item 12 was left completely blank, however, in Item 7, Petitioner indicated that the minor was evaluated by a healthcare provider. If there were any medical expenses that require reimbursement, they must be listed. Additionally, Item 12.b.(4) must be completed. This information is required in order to move forward with the Petition.

If counsel is able to provide this information at the hearing, the Court can accept oral testimony from either counsel or Petitioner as to this information then allow voir dire of Petitioner as to the terms of the settlement and whether the Petitioner understands that once approved, the settlement is final and binding on the minor. If satisfied, the Court intends to grant the Petition. If granted, the Court will execute the Orders and schedule a hearing for review regarding confirmation of deposit. If counsel is unable to provide this information, counsel is ordered to appear to set a new hearing date.

IN RE: CLAREY
CASE NUMBER: 26CV-0210037
Tentative Ruling on Petition for Change of Name: Petitioner seeks to change the last name of her minor daughter. The Certificate of Publication was filed on June 2, 2026. When a petition to change the name of a minor is brought by one parent only, the non-petitioning parent must be personally served with the notice of hearing or order to show cause at least 30 days before the hearing date. See CCP § 1277(a)(4). The Proof of Service filed on June 8, 2026 indicates service on June 6, 2026, which is only 23 days prior to the hearing. The non-petitioning parent must have no less than 30 days' notice. The Court intends to set the matter for hearing on **Monday, August 24, 2026 at 8:30 a.m. in Department 63**. Petitioner must obtain an Amended Order to Show Cause for the new hearing date and have the Amended Order to Show Cause personally served on the non-consenting parent no less than 30 days prior to August 24, 2026.

CREDIT CORP SOLUTIONS, INC. VS. COOPER
CASE NUMBER: 25CVG-01439
Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions in the amount of $500 issued on May 22, 2026 to Plaintiff Credit Corp Solutions, Inc. and Counsel Patenaude & Felix, APC for failure to appear on May 18, 2026 as ordered on April 9, 2026. Plaintiff provided a written response to the Order to Show Cause and asserts that Plaintiff did not receive notice.

The Court issued two Orders on April 9, 2026, the first vacated the Mandatory Settlement Conference and trial dates (because the matter was not at issue) and the second was an Order to Show Cause as Plaintiff had not timely sought entry of default. Hearing on the Order to Show Cause was on May 18, 2026. Plaintiff did not respond or appear. On May 22, 2026, the Court issued the current Order to Show Cause and the Order of Sanctions. All of these Orders have been mailed the same address and none have been returned as undeliverable. The Court will not disturb the previous Order of Sanctions but will **DISCHARGE** the current Order to Show Cause.

The Court notes that Proof of Service of Summons was filed on July 17, 2025. While counsel declared that they promptly began preparing for default judgment in September 2025, default has not been entered. There is no justification for the delay. The matter is continued to **Tuesday, September 8, 2026 at 9:00 a.m. in Department 63** for status of default and default judgment. If a default judgment is not on file prior to September 8, 2026, the Court intends to issue an Order to Show Cause Re: Sanctions to Plaintiff and counsel in the amount of $500 for failure to timely obtain default and default judgment. **No appearance is necessary on today's calendar.**

IN RE: FITZGERALD
CASE NUMBER: 26CV-0210192
Tentative Ruling on Petition for Change of Name: Petitioner Teri Linn Fitzgerald seeks to change her name to Noeme Zoe Tallescadi. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

JONES, ET AL. VS. DIETRICK
CASE NUMBER: 23CV-0203841
Tentative Ruling on Motion for Summary Judgment: Defendant/Cross-Defendant Jamie Ray Robertson (Robertson) moves for summary judgment on the Complaint filed by Plaintiffs Tiffany Jones, Christopher Beisel, and Raeven Jones Beisel (Plaintiffs) on December 8, 2023. Plaintiffs oppose the motion.

Request for Judicial Notice. Robertson requests the Court take judicial notice of the Complaint, Cross-Complaint, and Doe Amendment filed in this matter. These requests are granted pursuant to Evid. Code §§ 452(d) and 453. Robertson also requests the Court take judicial notice of the California Highway Patrol Traffic Collision Report. This request is denied, however, as noted below, the report is admitted into evidence for the purposes listed in Evidentiary Objection 1.

Evidentiary Objections. Plaintiffs make eleven objections to the evidence submitted by Robertson. The Court rules as follows:

1. Overruled. The Court is not accepting the CHP report for the truth of the matter, but for the fact that Plaintiffs were aware of the facts asserted therein and that Robertson's name and contact information were included.
2. Overruled.
3. Overruled.
4. Overruled.
5. Overruled.
6. Overruled.
7. Overruled.
8. Overruled.
9. Overruled.
10. Overruled. It is not clear what Plaintiffs are objecting to. While page 135 of the deposition transcript is not attached, the facts asserted are present in the deposition testimony provided.
11. Overruled. See Objection 1.

Merits. Summary judgment may be granted where it is shown that the action has no merit or that there is no defense to the action. CCP § 437c(a). The Court must determine from the evidence presented that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. CCP § 437c(c). In moving for summary judgment, a defendant has met his burden of showing that a cause of action has no merit if he has shown that one or more elements of the cause of action cannot be established, or that there is a complete defense to that cause of action. CCP § 437c(o). Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. The plaintiff may not rely upon the mere allegations or denials of his pleadings to show that a triable issue of material fact exists but, instead, must set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto. CCP § 437c(p)(2). The scope of the defendant's initial burden is defined by the pleadings. See *580 Folsom Assocs. v. Prometheus Dev. Co*. (1990) 223 Cal.App.3d 1, 18.

The Complaint was filed on December 8, 2023 and named Shawn Deitrick (Dietrick) and Does 1-50. Proof of Service of Summons was never filed so it is unclear when Plaintiffs served Dietrick. However, Dietrick did not file his Answer until April 16, 2025. On the same date, Dietrick filed a Cross-Complaint for Indemnity that named Robertson and Roes 1-50. Robertson answered the Cross-Complaint on August 22, 2025. Plaintiffs filed a Doe Amendment naming Robertson as Doe 1 on March 12, 2026. At the time, the matter was set for trial on May 18, 2026, however, the trial date was vacated on April 6, 2026 at the Mandatory Settlement Conference. Robertson filed the instant Motion for Summary Judgment on April 9, 2026. Trial is currently scheduled for October 6, 2026. Robertson moves for summary judgment arguing that he was not properly named as a Doe Defendant and that he was named well after the statute of limitations had passed. Per the Complaint, the collision in this matter occurred on December 28, 2021. The Complaint, while it names Does, makes no mention of a blue truck, or any other vehicle, driving in the opposing lane of traffic. Instead, Dietrick and the Does are listed as violating Veh. Code §§ 21703 (following too closely) and 22350 (unsafe speed). The Doe Amendment filed on March 12, 2026 does not list the date or how Plaintiffs discovered the name of Doe 1.

CCP § 474 allows for a party to be named as a Doe Defendant. "When the plaintiff is ignorant of the name of a defendant, he must state that fact in the complaint, or the affidavit if the action is commenced by affidavit, and such defendant may be designated in any pleading or proceeding by any name, and when his true name is discovered, the pleading or proceeding must be amended accordingly." CCP § 474.

> Section 474 allows a plaintiff who is ignorant of a defendant's identity to designate the defendant in a complaint by a fictitious name (typically, as a "Doe"), and to amend the pleading to state the defendant's true name when the plaintiff subsequently discovers it. When a defendant is properly named under section 474, the amendment relates back to the filing date of the original complaint. (*Woo v. Superior Court* (1999) 75 Cal.App.4th 169, 176 [89 Cal. Rptr. 2d 20].) Section 474 provides a method for adding defendants after the statute of limitations has expired, but this procedure is available only when the plaintiff is actually ignorant of the facts establishing a cause of action against the party to be substituted for a Doe defendant. (*Optical Surplus, Inc. v. Superior Court* (1991) 228 Cal.App.3d 776, 783 [279 Cal. Rptr. 194] (*Optical Surplus*).) "The question is whether [the plaintiff] knew or reasonably should have known that he had a cause of action against [the defendant]." (*Wallis v. Southern Pac. Transportation Co.* (1976) 61 Cal.App.3d 782, 786 [132 Cal. Rptr. 631] (*Wallis*).)
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> "Ignorance of the *facts* giving rise to a cause of action is the 'ignorance' required by section 474, and the pivotal question is, '"did plaintiff know *facts*?" not "did plaintiff know or believe that [he] had a cause of action based on those facts?"'" (*General Motors Corp. v. Superior Court* (1996) 48 Cal.App.4th 580, 594 [55 Cal. Rptr. 2d 871] (*General Motors*), quoting *Scherer v. Mark* (1976) 64 Cal.App.3d 834, 841 [135 Cal. Rptr. 90]; see *Hazel v. Hewlett* (1988) 201 Cal.App.3d 1458, 1464–1465 [247 Cal. Rptr. 723] (*Hazel*).) "Although it is true that a plaintiff's ignorance of the defendant's name must be genuine (in good faith) and not feigned [citations] and that a plaintiff

> need not be aware of each and every detail concerning a person's involvement before the plaintiff loses his ignorance [citations], it is equally true that the plaintiff does not relinquish [his] rights under section 474 simply because [he] has a suspicion of wrongdoing arising from one or more facts [he] does know." (*General Motors*, at pp. 594–595.)

McClatchy v. Coblentz, Patch, Duffy & Bass, LLP (2016) 247 Cal. App. 4th 368, 371-372.

The California Highway Patrol generated from this incident lists Robertson's full name, address, and phone number. Plaintiffs argue that the report did not make it clear that Robertson was in the blue truck in the opposing lane of traffic just prior to the collision. This is contradicted by the report itself. Under statements, Officer Gordon wrote:

> Witness Robertson related he was driving his vehicle (blue Dodge Ram 1500) on SR-44 W/B. at approximately 40 MPH. He wanted to pass a slower moving vehicle directly in front of him. He moved his Dodge Ram into the eastbound lane of SR-44 and quickly passed the vehicle. Once he passed the vehicle in front of him, he immediately moved back into the westbound lane of SR-44. He then saw a white snow cloud on the south shoulder approximately 300 feet ahead of his location. As he passed V-2 on the south shoulder, he noticed that there was a traffic collision. He then made a U-turn and went to check on the welfare of the occupants of the involved vehicles.

In the Summary portion of the report, Officer Gordon wrote that Plaintiff Jones "observed a blue pickup (Dodge Ram 1500) passing a vehicle in the opposite direction ahead of her." Plaintiffs took pictures of Robertson's truck at the scene, including a close-up of his license plate. Plaintiff Jones was deposed on October 22, 2025. She testified about a blue truck in the opposite lane of traffic and that she took a picture of a blue truck. When discussing one picture, it was referred to as "Robertson's vehicle" and Plaintiff Jones agreed.

Based on the evidence provided by Defendants, it is clear that prior to filing the Complaint, Plaintiffs were aware that Robertson was driving the blue truck in the opposite lane of traffic. Plaintiffs were aware of both Robertson's identity and the facts surrounding the collision. Robertson was named as a Cross-Defendant on April 16, 2025, nearly eleven months prior to being named as Doe 1.

In *A.N. v. County of Los Angeles* (2009) 171 Cal. App. 4th 1058, a trial court's ruling that a delay from knowing identities in late 2006 to early 2007 presented an unreasonable delay when the Doe Amendment was filed in August 2007. The delay here was from December 28, 2023 to March 12, 2026. When the Doe Amendment was filed, trial was scheduled for May 18, 2026. The Court recognizes that Robertson was not new to the case, however, he had only been named a cross-defendant for indemnity. This means that Robertson could only be liable to the extent that Dietrick was liable. With the amendment to Robertson as a direct Defendant, Plaintiffs could conceivably now argue that Robertson was the cause of the collision. This would be in conflict with the Doe Amendment itself as there is no mention of a vehicle in the opposing lane of traffic in the Complaint. Regardless of the merits, Robertson has presented evidence of prejudice. He was named as a direct defendant very late into the case, long after the statute of limitations for the underlying collision had occurred. Robertson has been put at a disadvantage in settlement negotiations and trial preparation. Robertson has established the Doe Amendment does not comport to CCP § 474 as the ignorance is feigned. The delay was unreasonable and Robertson would suffer prejudice if forced to move forward as Doe 1. Robertson has met his burden under CCP § 437c.

The burden then shifts to Plaintiffs to raise a triable issue of material fact. Plaintiffs claim that at the time of filing that they were unaware of Robertson's identity, however, this is not provided in either of their declarations. Instead, Plaintiffs only address the claim their insurance company made with Robertson's insurance company. The Court does not find the insurance evidence to be compelling as, other than the letters which Plaintiffs claim they did not receive, actual knowledge is not imputed to Plaintiffs. However, if Plaintiffs truly did not know that

Robertson was the driver of the blue pickup in the opposite lane of traffic just prior to the collision, Plaintiffs could and should have presented that evidence. Plaintiffs could have stated exactly how and when they discovered this fact. Their silence on the topic speaks volumes. The only other evidence provided by Plaintiffs is the declaration of counsel who provided her opinion that the Traffic Collision Report did not make it clear that Robertson was actual driver in the opposing lane of traffic and states that it was not until Roberton's deposition on December 8, 2025 that this fact was clear. The opinion regarding the report being unclear is unreasonable. There has been no explanation provided for the delay from December 8, 2025 to March 12, 2026. Although three months is not an extremely long period of time, at the December 8, 2025 deposition, trial was just over five months away. The deposition transcript from Robertson's deposition was not provided. Nothing argued by Defendants or presented as evidence raises a triable issue of material fact as to whether Plaintiffs knew of Robertson's identity and the underlying facts at the Complaint was filed. There is also no triable issue of material fact as to whether the delay was unreasonable or whether Robertson would suffer actual prejudice.

The motion is **GRANTED**. Robertson is dismissed as Doe 1 and will remain in the matter as a Cross-Defendant only. Robertson provided proposed Order that will be modified to reflect the Court's ruling.

KATSKE VS. SHASTA COUNTY BOARD OF SUPERVISORS, ET AL.
CASE NUMBER: 26CV-0209919

Tentative Ruling on Motion for Attorney Fees: Intervenors Laura Hobbs, Deidre Holliday, Kari Chilson, Jim Burnett and Richard Gallardo ("Intervenors") move for an order awarding attorney fees pursuant to Code of Civil Procedure section 1021.5. Intervenors request an award of $123,445 jointly and severally against Petitioner Jennifer Katske ("Petitioner") and Respondents Shasta County Board of Supervisors and Clint Curtis, in his official capacity as Shasta County Registrar of Voters ("Respondents"). Respondents have filed an Opposition to the Motion. Petitioner has filed a Request for Continuance of Hearing on the Motion. Intervenors oppose a continuance.

<u>Request for Judicial Notice</u>: Intervenors request the Court take judicial notice of the Shasta County Board of Supervisors Summary of Proceedings for the public meeting held on June 16, 2026 attached as Exhibit A. The request is denied because it was presented for the first time along with the Reply papers, leaving Petitioner and the County Board no opportunity to review and oppose the request.

<u>Background</u>: Petitioner initiated these proceedings on February 17, 2026 with the filing of a "Verified Petition for Writ of Mandate and Complaint for Declaratory and Injunctive Relief." Petitioner sought declaratory and injunctive relief to bar Respondents from placing the "Shasta County Voder ID, Hand-Counted Ballots, and Absentee Voting Limits Initiative" on the June 2, 2026 Shasta County ballot. Petitioner contended that certain provisions of the Initiative violated California law. On March 5, 2026, the Court granted leave for the Intervenors to enter the case.

The Intervenors filed a demurrer to the Petition, which the Court sustained without leave to amend on March 26, 2026, on the grounds that the Petition failed to state facts sufficient to constitute a cause of action pursuant to CCP 430.10(e). The Court also explained that pre-election review of the Initiative's legality was inappropriate, and that a post-election challenge would be the appropriate place to address Petitioner's arguments.

<u>Standard</u>: Code of Civil Procedure section 1021 provides that except as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties. Here, Intervenors seek attorney fees pursuant to CCP § 1021.5, which provides:

> Upon motion, a court may award attorneys' fees to a successful party against one or more opposing parties in any action which has resulted in the enforcement of an important right affecting the public interest if: (a) a significant benefit, whether pecuniary or nonpecuniary, has been conferred

> on the general public or a large class of persons, (b) the necessity and financial burden of private enforcement, or of enforcement by one public entity against another public entity, are such as to make the award appropriate, and (c) such fees should not in the interest of justice be paid out of the recovery, if any. With respect to actions involving public entities, this section applies to allowances against, but not in favor of, public entities, and no claim shall be required to be filed therefor, unless one or more successful parties and one or more opposing parties are public entities, in which case no claim shall be required to be filed therefor under Part 3 (commencing with Section 900) of Division 3.6 of Title 1 of the Government Code.

CCP § 1021.5

Analysis: Respondents request the Court stay ruling on Intervenors Motion for Attorney Fees. Petitioner also requests a continuance of the hearing. Both requests are in made in part on the grounds that on June 12, 2026, California Attorney General Rob Bonta and Secretary of State Shirley Weber filed a Petition for Writ of Mandate, challenging Measure B (the ballot initiative at issue in this matter). *The People of the State of California v. County of Shasta*, et al., Case No. C106517, filed in the California Court of appeal for the Third Appellate District, names Intervenors as Real Parties in Interest. It argued that Measure B is unlawful, and requested the court strike the measure on an expedited basis in light of the upcoming November election.

On June 25, 2026, after the filing of the parties' briefing in this case, the court of appeal denied the state officials' petition for writ of mandate without prejudice on procedural grounds. The appellate court declined to exercise its original jurisdiction, and instead indicated that appellate review would be appropriate only after the matter was litigated in the superior court.

Given the state's expressed concerns with the legality of Measure B, it is apparent to the Court that litigation over the matter has likely not yet come to an end. Further, given the impact that implementation of Measure B would have over Shasta County elections less than 5 months away, any review sought in the superior court will likely be done on an accelerated basis. Until a determination as to the validity of Measure B is made, this Court cannot determine whether Intervenors have met their burden under CCP §1021.5, thereby entitling them to attorney fees.

Therefore, pursuant to its authority under CCP § 128, and finding good cause, the Court will continue the hearing on this motion. Considering the likely accelerated nature of that matter, the Court finds that Intervenors will not be prejudiced by a continuance. Conversely, the potential for prejudice to Petitioner and Respondents absent a continuance is substantial. The ultimate determination of the legality of Measure B is clearly relevant to the Court's determination of whether a significant benefit has been conferred on the general public, and the necessity of private enforcement by Intervenors. The interests of justice are best served by a continuance. This motion is continued to **Monday, August 31, 2026 at 8:30 a.m. in Department 63**. The Court considers the matter fully briefed.

IN RE: MONDRAGON
CASE NUMBER: 26CV-0210282

Tentative Ruling on Petition for Change of Name: Petitioner Marissa Anne Mondragón-Mullens seeks to change her name to Marissa Aurora-Olivia Mondragón. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

IN RE: PANDIT
CASE NUMBER: 26CV-0210214
Tentative Ruling on Petition for Change of Name: Petitioner Arianna Carin Pandit seeks to change her name to Arianna Carin Lemont. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

IN RE: REMINGTON
CASE NUMBER: 26CV-0210245
Tentative Ruling on Petition for Change of Name: Petitioner Brittany Jean Remington seeks to change her name to Brittany Jean Vaughn. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

ROCKY TOP RENTALS, LLC VS. ROBINSON, ET AL.
CASE NUMBER: 24CVG-00573
Tentative Ruling on Motion to Deem Request for Admissions Admitted: Plaintiff Rocky Top Rentals, LLC seeks an order deeming the truth of the matters specified in Plaintiff's Request for Admissions, Set One to be admitted by Defendant Rick Carl Lewis. Despite being timely served, Defendant not file an Opposition.

When a party fails to respond to Requests for Admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Plaintiff's moving papers sufficiently demonstrate that Defendant has failed to respond to Request for Admissions, Set One within the required time frame. Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390.

Monetary sanctions are mandatory per CCP § 2033.280(c). Plaintiff has presented evidence that Plaintiff has incurred four hours of attorney time thus far and expects to spend one more hour attending the hearing. Counsel bills at $325 per hour which the Court finds to be reasonable. The filing fee for the motion was $60. Assuming that Plaintiff attends the hearing, sanctions will be ordered in the amount of $1,685. If Plaintiff does not attend the hearing, sanctions will be ordered in the amount of $1,360.

The motion is **GRANTED**. Defendant is deemed to have admitted as true each of the items contained in Plaintiff's Request for Admissions, Set One. Objections are waived. Monetary sanctions are awarded to Plaintiff in either the amount of $1,685 or $1,360. Plaintiff is to provide a proposed Order consistent with the Court's ruling that includes the text of all Requests for Admission being deemed admitted. The Court confirms the trial date of September 22, 2026.

SATHER VS. SATHER
CASE NUMBER: 26CV-0210352
Tentative Ruling on Demurrer and Motion to Strike: Defendant Barry Sather filed a Demurrer and Motion to Strike on May 27, 2026. The hearing date in the caption of the notice is June 29, 2026. However, the body of the Notice provides for a hearing date of June 22, 2026. Additionally, the Proof of Service attached to the Notice indicates only electronic service on Plaintiff Matthew Sather. Plaintiff is a self-represented litigant. Electronic service is only permitted for self-represented litigants if express consent has been given. CCP § 1010.6(c). Judicial Council form EFS-005-CV has not been filed and there is nothing before the Court that would permit the Court to determine that Plaintiff has agreed to electronic service. Compliance with CCP § 1010.6 and CRC 2.251

is required. Plaintiff did not file an Opposition to the Demurrer and Motion to Strike. Without proper notice to Plaintiff, the Demurrer and Motion to Strike are **OVERRULED/DENIED** without prejudice. Defendant provided a proposed Order that will be modified to reflect the Court's ruling.

IN RE: WRIGHT
CASE NUMBER: 26CV-0210187
Ruling on Petition for Change of Name: Petitioner Cynthia Marie Wright seeks to change her name to Katheryn Elizabeth Nickell. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

WYNHOFF VS. CITY OF REDDING
CASE NUMBER: 24CV-0204924
Tentative Ruling on Pitchess Motion: Defendant City of Redding filed a Motion for Disclosure of Peace Officer Personnel Records (Pitchess) seeking records from the County of Siskiyou regarding Plaintiff September Wynhoff. The Proof of Service attached to the motion indicates electronic service on four individuals with County of Siskiyou email addresses. The County of Siskiyou has appeared in this matter for a previous Pitchess motion and has been consistently represented by James R. Ross from Renne Public Law Group. Renne Public Law Group first appeared in a stipulation filed July 16, 2025 regarding the previous Pitchess motion and Renne Public Law Group has represented the County of Siskiyou throughout the entire previous Pitchess motion, including filing the Opposition, attending the hearing, attending the in camera review, and providing responsive records to the court. Nothing has been filed to indicate that Renne Public Law Group is no longer representing the County of Siskiyou. Siskiyou County Counsel has never appeared in this action on behalf of the County of Siskiyou.

Defendant City of Redding is again seeking records from the County of Siskiyou, but did not serve Renne Public Law Group. No Opposition to the motion has been filed. Where a party has an attorney in the action or proceeding, the service of papers must be upon the attorney instead of the party. CCP § 1015. Without proper service on the County of Siskiyou and there being no Opposition on file, the Court **DENIES** the motion without prejudice. Should Defendant City of Redding prefer a continuance of the hearing date in order to properly serve the County of Siskiyou through counsel of record, counsel may appear at the hearing to request a new hearing date. Otherwise, the Court will modify the proposed Order submitted by the City of Redding.

YATES VS. GENERAL MOTORS, LLC
CASE NUMBER: 24CV-0206692
Tentative Ruling on Motion for Attorney Fees and Costs: Plaintiff Mitchell Yates filed this Song-Beverly Consumer Warranty Act case on December 23, 2024, alleging that his 2021 GMC Sierra was defective and that GM failed to conform the vehicle to its written warranty within a reasonable number of repair attempts. Pursuant to a CCP section 998 Offer to Compromise executed November 13, 2025, Defendant agreed to designate Plaintiff as the prevailing party and pay Plaintiff's attorney fees and costs upon motion. Plaintiff requests that the Court award $38,286.73 in attorney fees and costs, plus a 0.3 multiplier, for a total award of $47,996.98. GM opposes hourly rates, total hours, and costs. GM requests an award not exceeding $8,437.05 in fees plus $435.00 in costs.

Merits: The Song-Beverly Act contains a cost-shifting provision that specifically allows prevailing buyers to recover their costs, including attorney's fees. Civ. C. § 1794(d). The attorney's fee award is limited to the amount the court determines was reasonably incurred by the buyer in commencing and prosecuting the action, based on actual time expended. The prevailing buyer has the burden of proving the fees were both reasonably necessary to conduct the litigation and reasonable in amount. Civil Code § 1794(d); *Robertson v. Fleetwood Travel Trailers of California, Inc.*, (2006) 144 Cal. App. 4th 785. The lodestar method applies to determining attorney's fees under the Song-Beverly Act. *Id.* at 817. When determining a reasonable attorney's fee award, using the lodestar method, the judge begins by deciding the reasonable hours the prevailing party's attorney spent on the case and multiplies that number by the prevailing hourly rate for private attorneys in the community who conduct non-contingent litigation of the same type. *Doppes v Bentley Motors, Inc.* (2009) 174 CA4th 967, 998.

Reasonableness of Hours: The court has discretion to decide which of the hours expended by the attorneys were reasonably spent on litigation. *Hammond v. Agran* (2002) 99 Cal.App.4th 115, 133. The predicate of any attorney fee award is the necessity and usefulness of the conduct for which compensation is sought. *Thayer v. Wells Fargo Bank, N.A.* (2001) 92 Cal.App.4th 819, 846. The court's focus in evaluating the fee request should be to provide a fee award reasonably designed to completely compensate attorneys for the services provided. The starting point for this determination is the attorney's time records. Absent clear indication they are erroneous, verified time records are entitled to credence. *Horsford v. Board of Trustees of Calif. State Univ.* (2005) 132 Cal.App.4th 359, 395-397.

Here, GM challenges 38.1 of 53.6 claimed attorney hours as unreasonably incurred. The Court finds the attorney hours detailed in the verified time records are reasonably incurred with the following exceptions: 1**)** $3,900 described as a flat fee for all services rendered by counsel prior to the preparation of Plaintiff's Complaint – the Court finds this unreasonable as the billing description is generic and duplicative of later entries, and the flat fee is excessive considering the work performed, 2) 1 hour for "reviewing time slips entries for accuracy and clarity" as this is clerical work attributable to overhead.

GM also objects to an additional 9 hours or $4,050.00 of anticipated time for work on this motion, arguing they are improper because the work had not been actually performed at the time of filing. The California Supreme Court has held that the time expended by attorneys in obtaining a reasonable fee is justifiably included in the attorneys' fee application, and in the court's fee award." *Serrano v. Unruh*, 32 Cal.3d 621, 631. However, the Court notes that the Declaration of Nadia Alam details anticipated costs as consisting of: 1) 4 hours to review the Opposition and 2 hours preparing for and attending the motion hearing ($2,700), and 2) 3 hours ($1350.00) to review Defendant's Motion to Tax Costs and preparing an Opposition. There is no separate pending motion to tax costs, the costs arguments are all addressed in the opposition to the motion for attorney fees so the Court will deduct $1,350.00. In total, the Court is approving 58.6 attorney hours on this matter.

Reasonableness of Rates: A reasonable hourly rate is determined by the prevailing rate charged to attorneys of similar skill and experience in the relevant community. See *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095. However, the court may also consider the attorney's skill and expertise, the nature of the work performed, the relevant area of expertise and the attorney's customary billing rates. *Flannery v. California Highway Patrol* (1998) 61 Cal.App.4th 629, 632. A plaintiff seeking to recover hourly rates for out-of-town counsel that are higher than the local rates must show (1) a good faith effort to find local counsel, and (2) demonstrate that hiring local counsel was impracticable. *Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1243.

Here, Plaintiff's counsel seeks approval of rates ranging from $600 for the senior partner, to $450 for an associate. Counsel provides details on each attorney's education and experience. Counsel also supports their requested rates by citing other California attorney rates, as well as decisions from other courts where their rates have been approved. These other courts include San Diego, Contra Costa, Merced, Riverside, and Los Angeles County Superior Courts. However, no evidence has been presented that a comparable, smaller-market court like Shasta has approved the rates sought. Additionally, no evidence has been presented that a good faith effort to find local counsel was made, or to demonstrate that hiring local counsel was impracticable. For those reasons, the Court exercises its discretion to approve the rate of $400 per hour, which is at the high end of prevailing rates charged by attorneys of similar skill and experience in this community.

Multiplier: The amount of attorney fees awarded pursuant to the lodestar adjustment method may be increased or decreased. Such an adjustment is commonly referred to as a "fee enhancement" or "multiplier." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132 (*Ketchum*).) The trial court is neither foreclosed from, nor required to, award a multiplier. … The Supreme Court has "set forth a number of factors the trial court may consider in adjusting the lodestar figure. These include: '(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; [and] (3) the contingent nature of the fee award, both from the point of view of eventual victory on the merits and the point of view of establishing eligibility for an award.'" *Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 247-248.

The Court has considered the factors listed above and declines to adjust the lodestar with a multiplier. This is a straightforward lemon law action in which both sides are well versed and relying largely on form pleadings and discovery. While the Court acknowledges the attorneys' skill and experience in this practice area, the case did not present novel and difficult questions or unusual skill in presentation. The nature of the litigation was within counsel's standard practice and did not preclude other employment. Finally, the contingent risk and delay in payment are standard in lemon law actions, and the delay was not unusually long or unexpected.

<u>Costs and Expenses</u>: The Song-Beverly Act provides that the court will award a successful plaintiff a sum equal to the aggregate amount of costs and expenses, which have been determined to have been reasonably incurred. Civ. C. § 1794(d). Plaintiff seeks $5,919.23 in costs. GM requests a reduction of $5,484.23 in costs. The Court finds that Plaintiff's costs are recoverable and reasonably incurred with the exception of $430.21 for Item 14 (this Court does not support electronic filing, and it is unclear how this Item is different from fees incurred for Item 1), and Item 15 which is not described. Costs of $5,489.02 are awarded.

The motion for attorney fees and costs is **GRANTED.** Attorney fees of $23,440.00 and costs of $5,489.02 are awarded, for a total of $28,929.02. No proposed order has been lodged as required by Local Rule 5.17(D). Plaintiff shall submit the order.

The Court notes that the matter is calendared on July 6, 2026 for a review hearing. The July 6, 2026 review hearing is **VACATED**. The matter will be on calendar on **<u>Tuesday, September 8, 2026 at 9:00 a.m. in Department 63</u>** for status of dismissal. If the matter is not dismissed by September 8, 2026, the parties are ordered to file status statements at least five court days prior to September 8, 2026.

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9:00 a.m. – Review Hearings

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ALPINE BLUE VS. HURLEY, ET AL
CASE NUMBER: CVCV21-0198057

This matter is on calendar for review regarding status of judgment or dismissal. The matter has not been dismissed. The matter is continued to **<u>Monday, August 31, 2026 at 9:00 a.m. in Department 63</u>** for status of judgment or dismissal. If the file has not been closed by the next hearing, Plaintiff and any party that filed a Cross-Complaint is ordered to file a status statement no less than five court days prior to the hearing that outlines what is still pending and when a dismissal will be filed. **No appearance is necessary on today's calendar.**

AMARANT VS. MONARCH LEARNING CENTER CHARTER SCHOOL, ET AL.
CASE NUMBER: 23CV-0202392

This matter is on calendar for review regarding status of judgment/dismissal. The Court notes that a Notice of Settlement was filed on August 27, 2025. A minor's compromise petition has not been filed for the minor plaintiff despite the Court continuing the matter two months for counsel to file. **An appearance is necessary on today's calendar.**

BAMFORD, ET AL. VS. BURNEY WATER DISTRICT
CASE NUMBER: 24CV-0204809
This matter is on calendar for review regarding status of the case. The matter was on this morning's Law & Motion calendar for a minor's compromise petition and an Order to Show Cause that issued to the Guardians ad Litem. The Court will need to set a future hearing date for status of the case. **An appearance by all parties is necessary at 9:00 a.m. today.**

BANK OF AMERICA, N.A. VS. TUCKER
CASE NUMBER: 25CVG-01959
This matter is on calendar for review regarding status of judgment/dismissal. Notice of Conditional Settlement was filed on December 26, 2025 informing the Court that the matter would be dismissed no later than December 14, 2027. The matter is continued to **Monday, February 28, 2028 at 9:00 a.m. in Department 63** for status of dismissal. Should the matter not be dismissed by the February 28, 2028 review hearing, the Court intends to dismiss the matter per CRC 3.1385(c)(2) and any good cause for not doing so will need to be provided at the February 28, 2028 review hearing. Alternatively, the parties may submit a stipulation and order for dismissal with the Court retaining jurisdiction per CCP § 664.6. **No appearance is necessary on today's calendar.**

IN RE EATTOCK
CASE NUMBER: 26PB-0033231
This matter is on calendar for review regarding confirmation of deposit. The Court has reviewed the Declaration of Kendall J. Eickmeyer filed on May 27, 2026 and is satisfied that the blocked account was opened correctly. The clerk is directed to close the file and vacate any future dates. **No appearance is necessary on today's calendar.**

LVNV FUNDING LLC VS. TAYLOR
CASE NUMBER: 25CVG-01102
This matter is on calendar for review regarding judgment/dismissal. Notice of Conditional Settlement was filed on July 7, 2025 informing the Court that the matter would be dismissed no later than May 11, 2026. On January 12, 2026, the Court set today's review hearing and reminded the parties that the matter would be dismissed on today's date per CRC 3.1385(c)(2) unless good cause was presented for the delay. No status statements have been filed. **Absent an appearance and good cause being presented, the Court will dismiss this matter without prejudice pursuant to CRC 3.1385(c)(2).**

MEGASTAR FINANCIAL CORP VS. TURNER, ET AL.
CASE NUMBER: 25CV-0207787
This matter is on calendar for review regarding status of service. The Court notes that the Proof of Service by Publication was filed on May 19, 2026 and that Request for Entry of Default was submitted on June 15, 2026 as to Defendant Kyle K. R. Turner. The Request for Entry of Default has not yet been processed. The matter is continued to **Monday, July 27, 2026 at 8:30 a.m. in Department 63** for status of default. **No appearance is necessary on today's calendar.**

SCHELL VS. DELL, ET AL.
CASE NUMBER: 25CV-0207049
This matter is on calendar for a trial setting conference. This matter is at issue. The Court designates this as a Plan III matter and intends to set the matter for trial no later than February 2, 2027. Both parties posted jury fees. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

STILIHA, ET AL. VS. FORD MOTOR COMPANY, ET AL.
CASE NUMBER: 24CV-0204729
This matter is on calendar for review regarding status of judgment/dismissal. Notice of Conditional Settlement was filed on December 26, 2025 informing the Court that the matter would be dismissed no later than April 27, 2026. The Court notes that the Motion for Attorneys' Fees was heard on May 11, 2026. The matter is continued to **Monday, July 27, 2026 at 9:00 a.m. in Department 63** for status of dismissal. Should the matter not be dismissed by the July 27, 2026 review hearing, the Court intends to dismiss the matter per CRC 3.1385(c)(2) and any good cause for not doing so will need to be provided at or before the July 27, 2026 review hearing. **No appearance is necessary on today's calendar.**

WARD, ET AL. VS. LEVINDOFSKE, ET AL.
CASE NUMBER: 25CV-0207586
This matter is on calendar for trial setting. Defendants have not filed a responsive pleading to the First Amended Complain filed May 13, 2026. The matter is not at issue. The Court notes that Defendants filed an automatic extension under CCP § 435.5(a)(2). The Court notes the Opposition filed by Plaintiff. There is no motion presently before the Court, however, the Court notes that CCP § 435.5(a)(2) reads, in part, "If the parties are unable to meet and confer at least 5 days before the date the motion to strike must be filed, the moving party shall be granted an automatic 30-day extension of time within which to file a motion to strike." The matter is continued to **Monday, July 20, 2026 at 9:00 a.m. in Department 63** for status of responsive pleading and possibly trial setting. **No appearance is necessary on today's calendar.**

WHITRED HOLDINGS, LLC, ET AL. VS. THE MCCONNELL FOUNDATION
CASE NUMBER: CVCV21-0197415
This matter is on calendar for review regarding status of the case. The parties filed a joint status statement informing the Court that they have agreed on a referee and need time to finalize the stipulation. The matter is continued to **Monday, August 31, 2026 at 9:00 a.m. in Department 63** for status of the case. **No appearance is necessary on today's calendar.**

WOODHOUSE VS. COUNTY OF SHASTA, ET AL.
CASE NUMBER: 26CV-0210492
Disclosure by the Court: The Court makes the following disclosure to all parties in this case. Judge Benjamin L. Hanna discloses that his spouse is an employee of the County of Shasta, working in the Office of the District Attorney. The Court has no reason to believe that Judge Hanna's spouse had any involvement in the investigation, management, prosecution or defense of this case, but does disclose the employment relationship between the respondent to the lawsuit (County of Shasta) and the Court's first degree relative as required by California Code of Judicial Ethics, Canon 3E(2).

This CEQA matter is on calendar for status of the writ. On April 30, 2026, the Court issued an Order requiring the parties to meet and confer regarding status of service, status of administrative record, and a briefing schedule. The parties are ordered to appear and provide this information. The Court notes that all parties in this matter, with the exception of Real Party In Interest have filed documents in this matter. The Court further notes that a CEQA Settlement Meeting was to occur on June 18, 2026. No status statements were filed. **An appearance is necessary on today's calendar.**